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Case Number: 25STCV28066 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

ARTURO MUNOZ,

Plaintiff,

v.

VANESSA MUNOZ; IVAN CRUZ MUNOZ; HILDA G. LIMON; and DOES

1-10; and DOES 1 through 10

Defendants.

Case No: 25STCV28066

Hearing Date: June 25, 2026

Calendar

Number: 12

Plaintiff Arturo Munoz moves for an order (1) granting his request for an interlocutory judgment, and (2) appointing Michael Rorwick as

the partition referee, arguing that the Court previously entered an order deeming his requests for admissions admitted. Defendants oppose the motion, arguing that the Court never entered an order deeming plaintiff's requests for admissions admitted.

The motion is GRANTED IN PART and DENIED IN PART as follows.

Pursuant to the mandatory language of Code of Civil Procedure section 2033.280, subdivision (c), Plaintiff's prior request for an order deeming admitted the truth of the matters in his Requests for Admissions (Set One) against Defendants Vanessa Munoz and Ivan Cruz Munoz is GRANTED. The Court hereby deems the truth of any matters specified in those requests admitted against Defendants.

The motion is otherwise DENIED without prejudice.

Background

This is a partition action involving a single-family residence located at 1319 Lott Avenue, Los Angeles, California 90063 (the "Property"). Plaintiff Arturo Munoz ("Plaintiff") alleges that he and his siblings, Defendants Vanessa Munoz ("Vanessa") and Ivan Cruz Munoz ("Ivan"), each own a one-third (1/3) undivided interest in the Property. Plaintiff further alleges that the other named defendant, Hilda G. Limon ("Limon"), has a lien interest of an unknown amount in the Property.

On September 25, 2025, Plaintiff filed this action against Vanessa, Ivan, Limon, and Does 1 to 10, asserting one cause of action for partition.

On January 13, 2026, Plaintiff filed two motions relevant to his instant motion: (1) a Motion to Compel Defendant Vanessa's Initial Responses, to Deem Requests Admitted, and for Sanctions; and (2) a Motion to Compel Defendant Ivan's Initial Responses, to Deem Request Admitted, and for Sanctions (collectively, the "Discovery Motions"). The Discovery Motions asked the Court to enter orders: (1) deeming Plaintiff's First Set of Requests for Admissions admitted against Ivan and Vanessa; (2)

compelling the defendants' initial responses to Plaintiff's First Set of Special Interrogatories and Requests for Production; and (3) imposing sanctions against the defendants. Vanessa and Ivan (collectively, "Defendants") opposed the Discovery Motions.

On March 12, 2026, the Court held the hearings on the Discovery Motions and issued the following ruling (hereinafter, the "March 12 Ruling"):

The Court and counsel confer in open court.

On agreement of the parties, the Court orders that Defendant will respond to discovery within thirty (30) days of today.

The Motion to Compel Discovery (not Further Discovery) - 1 moving party, 1 motion filed by ARTURO MUNOZ, as TRUSTEE OF THE GENEROUS DAD LIVING TRUST on 01/13/2026 is Granted in Part.

The Motion to Compel Discovery (not Further Discovery) - 1 moving party, 1 motion filed by ARTURO MUNOZ, as TRUSTEE OF THE GENEROUS DAD LIVING TRUST on 01/13/2026 is Granted in Part.

The request for sanctions is denied. Notice is waived.

(Minute Order dated March 12, 2026, p. 1.)

On March 27, 2026, Plaintiff filed the instant "Motion for Judgment on the Pleadings," mainly arguing that he is entitled to judgment as a matter of law as to his partition claim because the March 12 Ruling deemed his First Set of Requests for Admissions ("RFAs") admitted against Vanessa and Ivan.

On June 11, 2026, Defendants filed their opposition.

On June 22, 2026, Plaintiff filed

his reply.

Legal Standard

Motions

to Deem Requests for Admissions Admitted

“Although requests for admissions are included in the Code of Civil Procedure among discovery procedures (Code Civ. Proc., § 2019.010, subd. (e)), they ‘differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof. [Citation.]’ [Citations.]” (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735–736.) “As a general rule an admission is conclusive in the action as to the party making it. [Citations.] Absent leave of court to amend or withdraw the admission, no contradictory evidence may be introduced.” (Ibid.)

Subject to certain limitations, any party may obtain discovery through requests for admissions, and the requests “may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.)

“Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared, unless on motion of the requesting party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response.” (Code Civ. Proc., § 2033.250, subd. (a).)

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has

subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

(Code Civ. Proc., § 2033.280.)

Interpretation of Statutes

“When interpreting a statute, “our fundamental task ... is to determine the Legislature’s intent so as to effectuate the law’s purpose. [Citation.] We begin by examining the statute’s words, giving them a plain and commonsense meaning. [Citation.]” [Citations.] If possible, ““significance should be given to every word, phrase, sentence and part of an act in pursuance of the legislative purpose.’ [Citation.]” [Citation.] Where the ‘legislative intent is expressed in unambiguous terms, we must treat the statutory language as conclusive; ‘no resort to extrinsic aids is necessary or proper.’ [Citation.]’ [Citation.]” (People v. Superior Court (Plascencia) (2002) 103 Cal.App.4th 409, 422.)

Interpretation of Court Orders

“The same rules apply in ascertaining the meaning of a court order or judgment as in ascertaining the meaning of any other writing.’ [Citations.]” (The Law Firm of Fox & Fox v. Chase Bank, N.A. (2023) 95 Cal.App.5th 182, 203.)

Trial court orders “must always be considered in their entirety, and the same rules of interpretation will apply in ascertaining the meaning of a court’s order as in ascertaining the meaning of any other writing. If the language of the order be in any degree uncertain, then reference may be had to the circumstances surrounding, and the court’s intention in the making of the same.’ [Citations.]” (In re Ins. Installment Fee Cases (2012) 211 Cal.App.4th 1395, 1429–1430.)

Discussion

Effect of March 12 Ruling

As an initial matter, Plaintiff argues that the Court’s March 12 Ruling deemed his RFAs admitted against Defendants.

The Court agrees with Defendants that the March 12 Ruling did not issue an order deeming Plaintiff’s RFAs admitted. Instead, the Court ordered Defendants to serve their responses within 30 days and denied Plaintiff’s requests for sanctions. The order is silent on the issue of deeming the RFAs admitted, and Plaintiff has failed to submit extrinsic evidence supporting his interpretation.

However, as shown under the Legal

Standard section of this ruling, when a responding party fails to serve timely responses to RFAs and the propounding party moves to deem the RFAs admitted, Code of Civil Procedure section 2033.280, subdivision (c) (“Section 2033.280(c)”) unambiguously and explicitly requires the trial court to enter an order deeming the RFAs admitted unless it finds the responding party “has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c) [stating that the court “shall” make such order]; People v. Billy (2024) 107 Cal.App.5th 246, 259 [“The term ‘shall’ [in a statute] is mandatory”].)

Here, the opposition states that “Defendants acknowledge [in the present tense] that discovery responses were not subsequently served,” despite the

March 12 Ruling giving them 30 days to serve responses to the RFAs.
(Opposition, p. 3:5-6.) Defendants offer no explanation as to why they have still not yet served responses to the RFAs.

Therefore, given the mandatory language of Section 2033.280(c), the Court now enters an order deeming admitted Plaintiff's RFAs against Defendants. (See Declarations of Gabriella Sembenini-Tato in support of the Discovery Motions, filed January 13, 2026, Exh. 6 – copies of the RFAs [showing Plaintiff propounded 32 RFAs on Ivan and 32 RFAs on Vanessa that were identical].)

Plaintiff's request to deem his Requests for Admission (Set One) against Defendants is granted. The genuineness of any documents and the truth of any matters specified in the requests are hereby deemed admitted against Defendants.

Plaintiff's Request for Judgment on the Pleadings and Interlocutory Judgment

Given the Court's ruling deeming the RFAs admitted, Plaintiff asks the Court to issue a motion for judgment on the pleadings as to the partition action without leave to amend. (Motion, p. 8:13-15.) Plaintiff also requests an interlocutory judgment under Code of Civil Procedure section 872.720 ("Section 872.720").

As shown below, the process of partitioning a real property is more complicated than Plaintiff is making it to be.

““[P]artition” is “the procedure for segregating and terminating common interests in the same parcel of property.” [Citation.] It is a “remedy much favored by the law. The original purpose of partition was to permit cotenants to avoid the inconvenience and dissension arising from sharing joint possession of land. An additional reason to favor partition is the policy of facilitating transmission of title, thereby avoiding unreasonable restraints on the use and enjoyment of property.” [Citation.]” (Summers v. Superior Court (2018) 24 Cal.App.5th 138, 142 (Summers).)

In 2022, the California Legislature enacted the Partition of Real Property Act (Code Civ. Proc., § 872.210, et seq.) (“PRPA”).

The PRPA “applies to real property held in tenancy in common [like in this case] where there is no agreement in a record binding all the cotenants ... [and] govern[ing] the partition of the property.” (Code Civ. Proc., § 874.311, subd. (b).) The “act applies to actions for partition of real property filed on or after January 1, 2023.” (Id. at subd. (c).) “In an action to partition real property, the property shall be partitioned under [the PRPA] unless all of the cotenants otherwise agree in a record.” (Id. at subd. (a).)

Section 872.720 is the governing statute for interlocutory judgments in partition actions, (Summers, supra, 24 Cal.App.5th at p. 142.) Although that statute is not part of the PRPA, the PRPA is meant to “supplement” other provisions of the title for which it belongs unless such provisions are inconsistent with the Act. (Code Civ. Proc., § 874.313, subd. (b).) In other words, if a provision under the same title is inconsistent with the PRPA, the PRPA’s provisions controls. (Ibid.) Here, none of the parties have argued (and the Court has not found any law holding) that Section 872.720 is inapplicable to this case or otherwise inconsistent with the PRPA. Therefore, the statute governs Plaintiff’s motion for interlocutory judgment.

Under Section 872.720, “an interlocutory judgment in a partition action is to include two elements: [1] a determination of the parties’ interests in the property and [2] an order granting the partition. (§ 872.720, subd. (a).)” (Summers, supra, 24 Cal.App.5th at p. 143.) “[T]he manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties’ ownership interests are determined, but not before.” (Ibid. [holding that the trial court in that case erred when it ordered sale of the property before determining the parties’ interests in the property].)

Regarding referee appointments, the relevant statute states that “[t]he court shall appoint a referee to divide or sell the property as ordered by the court.” (Code Civ. Proc., § 873.010, subd. (a).)

However, “[t]he word ‘shall’ as used in [the statute] should be construed to require the appointment of a referee only where it is determined that a referee is necessary or would be desirable or helpful and that it should not be so strictly construed as to require the expense and

time-consuming services of a referee where the court has adequate evidence before it to render its decision.” (Richmond v. Dofflemyer (1980) 105 Cal.App.3d 745, 755.)

In addition: “None of the following persons shall be appointed a referee ...: ¶ (a) A clerk or deputy clerk of the court. ¶ (b) A former or present partner or employee of the judge. ¶ (c) A relative within the third degree of the judge or the judge’s spouse or the spouse of such a relative. ¶ (d) An owner of any interest in the property that is the subject of the action.” (Code Civ. Proc., § 873.050.) In addition, the PRPA mandates “each referee ... shall be disinterested and impartial and not a party to or a participant in the action.” (Code Civ. Proc., § 874.315.)

1. Interlocutory Judgment Requirements

As stated above, “an interlocutory judgment in a partition action is to include two elements: [1] a determination of the parties’ interests in the property and [2] an order granting the partition. ([Code Civ. Proc.] § 872.720, subd. (a).)” (Summers, supra, 24 Cal.App.5th at p. 143.)

Here, the Court’s RFA order has deemed the truth of the following RFAs admitted against Defendants: (a) Plaintiffs and Defendants are the only owners of the Property, and each owns a one-third (1/3) interest in the Property (RFA 2-6); (b) Defendants have never made any agreement with Plaintiffs related to the Property (RFA 9); and (c) Plaintiff has a right to partition (RFA 11).

If Defendants were the only named defendants in this action, Plaintiff would be entitled to an interlocutory judgment based on the truth of those established facts. However, Defendant Limon has not yet been served, and it is unclear what effect, if any, the defendant’s appearance would make in this action.

Therefore, the Court denies the request for an interlocutory judgment.

2. Manner of Partition

“When the trial court ‘determines the interests of the parties in the property and orders the partition of the property,’ it shall decide the manner of partition ‘unless [this] is to be later determined.’ ([Code Civ. Proc.] § 872.720, subd. (a).) ‘The manner of partition may be “in kind”—i.e., physical division of the property [citation] according to the parties’ interests as determined in the interlocutory judgment. [Citations.] Alternatively, if the parties agree or the court concludes it “would be more equitable,” the court may order the property sold and the proceeds divided among the parties.’ [Citation.]” (Summers, supra, 24 Cal.App.5th at p. 143.)

Plaintiff asks the Court to appoint a referee
“to oversee the marketing and sale of the Property.” (Motion, p. 7:23-24.)

However, the PRPA requires certain procedures
to be followed before the Property can be partitioned.

First, the PRPA requires the Court to
determine the fair market value of the Property. Section 874.316 states in full.

(a) Except as otherwise provided in subdivisions
(b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d).

(b) If all cotenants have agreed to the value of
the property or to another method of valuation, the court shall adopt that value or the value produced by the agreed method of valuation.

(c) If the court determines that the evidentiary
value of an appraisal is outweighed by the cost of the appraisal, the court, after an evidentiary hearing, shall determine the fair market value of the property and send notice to the parties of the value.

(d) If the court orders an appraisal, the court
shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court.

(e) If an appraisal is conducted pursuant to subdivision (d), not later than 10 days after the appraisal is filed, the court shall send notice to each party with a known address, stating all of the following: [¶] (1) The appraised fair market value of the property. [¶] (2) That the appraisal is available at the court clerk's office. [¶] (3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection.

(f)
If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). In addition to the court-ordered appraisal, the court may consider any other evidence of value offered by a party.

(g) After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value.

Second, when a cotenant requests partition by sale, the PRPA adds more requirements. Section 874.317 (a PRPA statute) states in part:

(a) If any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.

(b) Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale.

(c) The purchase price for each of the interests of a cotenant that requested partition by sale is the value of the entire

parcel determined under Section 874.316 multiplied by the cotenant's fractional ownership of the entire parcel.

(d) After expiration of the period described in subdivision (b), the following rules apply: [¶] (1) If only one cotenant elects to buy all the interests of the cotenants that requested partition by sale, the court shall notify all the parties of that fact. [¶] (2) If more than one cotenant elects to buy all the interests of the cotenants that requested partition by sale, the court shall allocate the right to buy those interests among the electing cotenants based on each electing cotenant's existing fractional ownership of the entire parcel divided by the total existing fractional ownership of all cotenants electing to buy and send notice to all the parties of that fact and of the price to be paid by each electing cotenant. [¶] (3) If no cotenant elects to buy all the interests of the cotenants that requested partition by sale, the court shall send notice to all the parties of that fact and resolve the partition action under paragraphs (a) and (b) of Section 874.318.

After the above procedure is followed and “[i]f all the interests of all cotenants that requested partition by sale are not purchased by other cotenants pursuant to Section 874.317, or if after conclusion of the buyout under Section 874.317 a cotenant remains that has requested partition in kind, the court shall order partition in kind unless the court, after consideration of the factors listed in Section 874.319, finds that partition in kind will result in great prejudice to the cotenants as a group.” (Code Civ. Proc., § 874.318, subd. (a).)

“If the court does not order partition in kind under subdivision (a) [of Section 874.318], the court shall order partition by sale pursuant to Section 874.320 or, if no cotenant requested partition by sale, the court shall dismiss the action.” (Code Civ. Proc., § 874.318, subd. (b).)

“If the court orders partition in kind pursuant to subdivision (a), the court may require that one or more cotenants pay one or more other cotenants amounts so that the payments, taken together with the value of the in-kind distributions to the cotenants, will make the partition in kind just and proportionate in value to the fractional interests held.” (Code Civ. Proc., § 874.318, subd. (c).) In addition, “[i]f the court orders partition in kind, the court shall allocate to the cotenants that are unknown, unlocatable, or the subject of a default judgment, if their interests

were not bought out, a part of the property representing the combined interests of these cotenants as determined by the court.” (Id. subd. (d).)

Here, the Court has not yet determined the fair market value of the Property, and Plaintiff’s RFAs neither addressed nor sought to establish the truth of that issue or the above PRPA requirements. To the extent the RFAs in fact addressed those issues or requirements, the burden was on the Plaintiff to make that argument in his instant motion. He has not done so.

Therefore, the Court orders that the manner of partition is to be later determined.

3. Request for a Referee

Plaintiff asks the Court to appoint Michael Rorwick as partition referee. However, as discussed above, certain PRPA procedures (e.g., determination of the fair market value of the Property) must be followed before partition can take place.

Therefore, Plaintiff’s request for a referee appointment is denied.

4. Request for Judgment on the Pleadings

“A motion by plaintiff for judgment on the pleadings is in the nature of a general demurrer, and the motion must be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense. [Citations.] For the purpose of ruling on the motion, the trial court must treat all of defendant’s allegations as being true, and since the moving party admits the untruth of his own allegations insofar as they have been controverted, all such averments must be disregarded whether there is a direct and specific denial or an indirect denial by virtue of affirmative allegations of a contrary state of facts.” (MacIsaac v. Pozzo (1945) 26 Cal.2d 809, 812–813; see also Bank of America Nat. Trust & Sav. Ass’n v. Vannini (1956) 140 Cal.App.2d 120, 126 [“If the answer puts in issue a material allegation of the complaint, or sets up affirmative matter constituting a defense, the motion for judgment on the pleadings should not have been granted”].)

Here, the RFA order has

deemed admitted the truth of the fact that Defendants lack any defenses or counterclaims to Plaintiff's Complaint (RFA Nos. 27 and 28).

However, Plaintiff has not cited (and this Court has not found) any law holding that a judgment on the pleadings order can be entered where PRPA procedures have yet to be followed and at least one named defendant has not appeared.

Therefore, the request for judgment on the pleadings is denied.